

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MOHAWK GLOBAL LOGISTICS CORP. DBA MOHAWK
GLOBAL LOGISTICS, *Complainant*

v.

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC. AS
AGENT FOR MEDITERRANEAN SHIPPING COMPANY, S.A.
GENEVA, *Respondent*.

DOCKET NO. 1971(F)

Served: September 10, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER DESIGNATING ADMINISTRATIVE LAW JUDGE AND REQUIRING JOINT STATUS REPORT

On August 4, 2021, the Secretary of the Federal Maritime Commission issued a Notice of Filing of Small Claims Complaint and Assignment, assigning this proceeding to the Office of Administrative Law Judges. On September 3, 2021, Respondent filed its answer and indicated that it did not consent to the use of the informal procedures set forth at 46 C.F.R. Subpart S of the Commission's Rules for adjudication of this proceeding.

Because Respondent does not consent to the use of the Subpart S procedures, this claim will be adjudicated by an administrative law judge under the procedures set forth at 46 C.F.R. Subpart T of the Commission's Rules. 46 C.F.R. § 502.311. The Docket Number is therefore changed to 1971(F). If parties are represented, the representative should file a notice of appearance. See Exhibit No. 1 to Subpart B, 46 C.F.R. §§ 502.23, 502.26, 502.27 of part 502.

The Commission's Rules provide that the "administrative law judge may require the submission of additional affidavits, documents, or memoranda from complainant or respondent." 46 C.F.R. § 502.314. The parties are directed to submit a joint status report with proposed schedule which includes the information below by October 12, 2021.

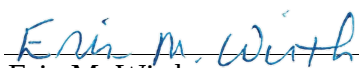
The parties are instructed to discuss whether they can reach a settlement of this proceeding. By September 24, 2021, the parties must contact the Commission's Office of Consumer Affairs and Dispute Resolution Services ("CADRS") to participate in a preliminary conference to determine whether this complaint may be resolved through mediation. The joint status report *must not provide details regarding settlement negotiations* but should indicate whether or not CADRS was contacted. If the parties decide to engage in mediation this proceeding will not be stayed during the dispute resolution process.

The Commission's rules governing discovery are not applicable to proceedings under Subpart T; therefore, there is no formal discovery in this proceeding. While there is no formal discovery, the parties are urged to cooperate and voluntarily produce information requested by the other party. If a party is unable to obtain information by voluntary means, in the joint status report they should identify the information requested and explain why the information is relevant to this proceeding, what attempts have been made to obtain the information voluntarily, and why the information cannot be obtained in some other manner. In addition, the parties may propose a schedule and describe any additional filings requested prior to ruling on the proceeding.

The Commission recently issued interpretive rules regarding elements required to establish claims under 46 U.S.C. § 41102(c) and principles applicable to demurrage and detention claims. 46 C.F.R. §§ 545.4, 545.5. In addition, pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014, 46 U.S.C. § 41305(e), and Commission Docket No. 15-06, under certain circumstances, attorney fees may be awarded to the prevailing party in a complaint proceeding. It is therefore in the best interest of all parties to proceed expeditiously.

Due to challenges associated with COVID-19, the Commission is temporarily waiving certain requirements in 46 C.F.R. part 502 related to the paper filing of documents, ink signatures, and service by mail of complaints. Order, Docket No. 20-07 (May 12, 2020), www2.fmc.gov/readingroom/docs/20-07/20-07_order.pdf; *see also* Temporary Adjustments in FMC Operations (Mar. 19, 2020), www.fmc.gov/temporary-adjustments-in-fmc-operations/.

It is hereby **ORDERED** that pursuant to Commission Rule 25 (46 C.F.R. § 502.25(d)), the Honorable Erin Wirth will preside at such hearings and presentation of evidence as may be necessary to resolve this proceeding and to issue an initial decision or dispositive ruling. The parties shall file a joint status report by October 12, 2021. All filings subsequent to this notice should be emailed to the Office of the Secretary at secretary@fmc.gov, with courtesy copies to opposing counsel or party and to this office at judges@fmc.gov.


Erin M. Wirth
Chief Administrative Law Judge